

Ours Says Claire McCaskill "voted against including health records in the background check system. Missouri Attorney General Josh Hawley told Missouri residents on live television that U.S. Sen. Claire McCaskill voted against the inclusion of mental health records in gun background checks. "The (national background check system) doesn't work that well because there's a giant loophole right in the middle of it. It doesn't include mental health records," Hawley said during the second Senate debate. "Congress could have done this, they've had the chance to do it, but they haven't." "Sen. McCaskill voted against including health records in the background check system. I think that was wrong," Hawley said. "I know it was along the party line, but I think that was wrong." We've fact-checked other politicians' statements on gun control legislation in the past, including some specifically related to firearm access for people with a history of mental illness. McCaskill has received an "F" rating from the National Rifle Association and taken \$156,949 from gun control political action committees this election cycle, according to the nonprofit, nonpartisan Center for Responsive Politics. McCaskill maintained during the debate that she supports and has voted for universal background checks. So has she or hasn't she voted against including mental health records as part of the gun-purchasing background check process? What McCaskill hasn't voted for Hawley's evidence for McCaskill's disapproval of including mental health records in the background check system was her vote against a 2016 amendment to the Commerce, Justice, Science, and Related Agencies Appropriations Act of 2016. Sponsored by Sen. Chuck Grassley, R-Iowa, the proposal was one of four that came in the wake of a mass shooting at an Orlando nightclub, where a gunman killed 49 people. Grassley's 2016 amendment would have incentivized states to submit relevant mental health records to the National Instant Criminal Background Check System. "The Democrats put the kibosh on a bill that, on its face, would have strengthened (to some degree) populating NICS database with names of persons ineligible to purchase guns on account of a mental illness disqualifier," said Jacob James, a professor of constitutional law and director of the Center for Research in Crime and Justice at New York University, in an email. James said that Grassley's amendment likely didn't

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